

25NWCV02063 25NWCV02063

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-09-15

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Case Number: 25NWCV02063 Hearing Date: September 15, 2026 Dept: L

JENNIFER

CARBINE vs NORMS RESTAURANTS, LLC

CASE NO.: 25NWCV02063

HEARING: September 15, 2026 @ 9:30

a.m.

#20

TENTATIVE ORDER

Defendant Norms Restaurants,
LLC's Demurrer to the Complaint is OVERRULED.

Defendant is ordered to file
an answer within 10 days of this order.

Defendant to give notice.

Background

This is a disability rights
action. On June 9, 2025, Plaintiff Jennifer Carbine ("Plaintiff") filed this
action against Defendant Norms Restaurants, LLC ("Defendant") and Does 1 to 10.

On December 22, 2025, Plaintiff
filed the First Amended Complaint (FAC). The FAC alleges that Plaintiff is a

legally blind person who requires screen-reading software to read website content. Plaintiff asserts that Defendant's website, www.norms.com, (hereinafter, "Website") which provides consumers to an array of services and information related to Defendant's brick-and-mortar locations, is not fully-accessible to blind and visually-impaired consumers. On multiple occasions in January 2025, Plaintiff encountered multiple accessibility barriers. Due to such barriers, "Plaintiff was unable to fully and independently access and use the Website's online ordering system when visiting for the purpose of placing an order for pick up at the brick-and-mortar location in Bellflower, California, including being unable to reliably select the Bellflower restaurant as the pickup location, navigate to and select desired menu items, customize those items, and activate the final control needed to place her order." (FAC, ¶ 52.) In September 2025, "even though she intended to place an order in advance while she would be in the area running errands so that her food would be ready when she arrived. . . Plaintiff was forced to go to Defendant's brick-and-mortar restaurant in person to place and customize her order in a noisy environment. . . which caused her frustration and inconvenience." (FAC, ¶ 55.) The FAC alleges one cause of action for Violations of the Unruh Civil Rights Act (Cal. Civ. Code § 51, et seq.).

Defendant now demurs to the FAC on grounds that the Unruh Civil Rights Act (UCRA) cause of action fails to state a claim and is uncertain.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. ("Donabedian") (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976)

18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the parties meet and confer “in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a).)

The parties met and conferred via email and telephone regarding the issues in this Demurrer but were unable to reach a resolution. (Arnold Decl., ¶¶ 3-4.) The Court finds that the meet and confer requirement has been met.

Discussion

Pursuant to UCRA, “All persons within the jurisdiction of this state . . . no matter what their . . . disability . . . are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” (Civil Code, § 51, subd. (b).) “A plaintiff can recover under the [UCRA] on two alternate theories: (1) a violation of the ADA [Civil Code section 51, subd. (f)]; or (2) denial of access to a business establishment based on intentional discrimination.” (Martinez v. San Diego County Credit Union (“SDCCU”) (2020) 50 Cal.App.5th 1048, 1059.)

To establish a violation of the ADA, “a plaintiff must show: (1) a covered disability; (2) ‘the defendant is a private entity that owns, leases, or operates a place of public accommodation; and (3) the plaintiff was denied public accommodations by the defendant because of [the] disability.’” (Martinez, supra, 50 Cal.App.5th p. 1060, quoting Molski v. M.J. Cable, Inc. (9th Cir. 2007) 481 F.3d 724, 730.) Websites alone are not considered places of public accommodation under the ADA. (Martinez v. Cot’n Wash, Inc. (“Cot’n Wash”) (2022) 81 Cal.App.5th 1026, 1043-1044, 1052-1053.)

However, under the “nexus” test, courts may “consider whether the alleged website deficiencies impinge on the plaintiff’s ability to have equal access to, and enjoyment of, the products and services offered at the physical location.” (SDCCU, *supra*, 50 Cal.App.5th at p. 1067.) Thus, even if the website has accessibility issues, “a plaintiff who fails to allege any connection between the website barriers and a physical location does not have an ADA claim.” (Gomez v. Trinitas Cellars, LLC (N.D. Cal., Mar. 9, 2022, No. 3:21-CV-09006-WHO) 2022 WL 704857, at *3, quoting Langer v. Pep Boys Manny Moe & Jack of California (N.D. Cal., Jan. 15, 2021, No. 20-CV-06015-DMR) 2021 WL 148237, at *5.)

Nexus

Defendant argues that Plaintiff fails to establish a sufficient nexus between the Website’s alleged accessibility barriers and her ability to patronize the restaurant. The FAC merely alleges that the Website barriers deterred her from visiting Defendant’s brick-and-mortar locations. However, the FAC simultaneously admits that, in September 2025, Plaintiff successfully located and traveled to the Bellflower restaurant, placed and customized her order, and obtained her order. (FAC, ¶ 55.) Such admission defeats any arguments that Plaintiff was denied access to Defendant’s goods and services. Defendant argues that the FAC’s allegations “amount to nothing more than arguable technical accessibility issues, which courts have held are insufficient to establish a barrier under the ADA.” (Dem., 8:27-28, 9:1.)

In opposition, Plaintiff argues that the FAC allege a sufficient nexus to state a claim under the ADA and UCRA. Plaintiff notes that Defendant’s cited authorities are distinguishable or merely persuasive federal cases.

Here, the Court finds that Plaintiff has alleged a sufficient nexus. The FAC alleges that, due to various inaccessible website features, Plaintiff “was unable to fully and independently access and use the Website’s online ordering system when visiting for the purpose of placing an order for pick up at the brick-and-mortar location in Bellflower, California, including being unable to reliably select the Bellflower restaurant as the pickup location, navigate to and select desired menu items, customize those items, and activate the final control needed to place her order.” (FAC, ¶ 52.) The inability place an order at a physical

location via the Website is a recognized basis for establishing a nexus. For example, the Ninth Circuit Court of Appeals found such a nexus between defendant Domino's website and physical locations where customers could locate nearby restaurants and place orders via the website for delivery or pickup. (*Robles v. Domino's Pizza, LLC* (9th Cir. 2019) 913 F.3d 898, 905 [involving a visually-impaired plaintiff that was unable to place an order for delivery or pick-up on defendant's website].) In another case, the court found a nexus where a restaurant's website included a menu and reservation system that were inaccessible to visually impaired customers. (*Thurston v. Midvale Corp.* (2019) 39 Cal.App.5th 634, 638, 646 [noting that "the website connects customers to the services of the restaurant"].)

The Court addresses Defendant's argument that Plaintiff was ultimately able to travel to the restaurant and place an order in a later section.

Particularity

Defendant further argues that the FAC fails to identify the specific barriers Plaintiff encountered on the Website that impeded her access to the restaurant. Specifically, Defendant argues that the FAC "offers only generalized categories of alleged coding issues, without identifying any specific webpage, element, or function that was inaccessible, and without explaining how any alleged barrier prevented her from accessing the Bellflower Norms." (Dem., 9:22-25.)

In opposition, Plaintiff argues that Defendants cited case, *Whitaker v. Tesla Motors* (2021) 985 F.3d 1173, is inapplicable, as it involved construction-based access barriers (i.e., whether a service counter at a car dealership was inaccessible). Plaintiff argues that the FAC adequately explains that, due to certain inaccessible features of the Website, Plaintiff was unable to review Defendant's menu before visiting and was unable to place a pick-up order. (FAC, ¶¶ 52-53.) Plaintiff describes these features with sufficient particularity.

The Complaint alleges the following:

"a.

The home page and menu pages contained numerous graphics, links, and buttons

associated with the online ordering pathway (including “Order Now,” “Start Order,” and location selection controls) that were not labeled or were incorrectly labeled, or lacked alternative text (“Alt text”), which prevented Plaintiff’s screen reader from announcing the existence and function of those elements. Web accessibility requires that Alt-text be coded with each picture so that screen-reading software can speak the Alt-text where a sighted user sees pictures. Alt-text does not change the visual presentation, but instead a text box shows when the cursor moves over the picture. The lack of Alt-text on these graphics prevents screen-readers from accurately vocalizing a description of the graphics.

b.

Plaintiff encountered multiple unlabeled or mislabeled buttons and links within the online ordering interface, including controls needed to select a restaurant location, select menu items, customize items, and proceed to the checkout page, such that Plaintiff had no way to discern the purpose or function of those buttons or links using her screen reader;

c.

Plaintiff encountered multiple pages containing insufficient and disorganized navigational headings and landmarks, requiring Plaintiff to expend substantial additional time and effort to try to locate basic information such as store locations, menu categories, and ordering options, and causing her screen reader focus to jump unpredictably when she attempted to navigate by heading or link; and,

d.

Plaintiff was ultimately unable to complete the process of placing an order for pick up because essential portions of the ordering system, including location selection and the “checkout” or equivalent confirmation controls, were inaccessible to her screen-reading software, leaving Plaintiff unable to independently review her order, confirm her selections, or submit payment, thereby denying her full and equal access to the Website and the goods and services offered in connection with Defendant’s brick-and-mortar locations.”

(FAC, ¶ 51(a)-(d).)

The Court finds that the FAC adequately identifies specific accessibility barriers on the Website and links those barriers to Plaintiff’s inability to review the menu and place an advance

pick-up order as other non-visually impaired patrons are able to do. (See FAC, ¶¶ 52-53.) The Court is not persuaded that more detail is needed—such issues can be resolved through discovery.

Deterrence and Injury

Defendant asserts that the FAC fails to allege that Plaintiff was deterred from accessing the physical Bellflower restaurant location. Defendant reiterates that Plaintiff was able to locate and travel to the restaurant and place an order. (See FAC, ¶ 55.) Thus, Plaintiff was not actually prevented from accessing the restaurant. Rather, the FAC alleges that Plaintiff was “deterred, on a regular basis, from accessing the Website,” and that the Website has “deterred Plaintiff from visiting Defendant’s brick-and-mortar locations.” (FAC, ¶ 57.) Mere deterrence from accessing a website is insufficient. Relatedly, Defendant argues that the FAC fails to allege any actionable injury.

In opposition, Plaintiff asserts that her ultimate access to Defendant’s restaurant does not foreclose her ADA claim because the ADA requires “full and equal” access. The FAC alleges that, due to the Website’s inaccessibility features, “Plaintiff was forced to go to Defendant’s brick-and-mortar restaurant in person to place and customize her order in a noisy environment, where background noise made it difficult for the cashier to hear and understand her.” (FAC, ¶ 55.) In other words, the physical visit occurred because Plaintiff was unable to place an advance pick-up order on the Website. The ADA focuses on equality of access, not ultimate access.

The Court is not persuaded by Defendant’s arguments. The FAC alleges that Plaintiff attempted to use the website on multiple occasions in January 2025, during which she could not review the menu or place an order. (FAC, ¶¶ 51, 52-53, 56, 57.) Plaintiff did not visit the physical location until September 2025, in which Plaintiff was required to place an order in person, although placing an online order would have been more convenient. (FAC, ¶ 55.) The Court finds that Plaintiff has alleged sufficient deterrence. This case is distinct from cases where the plaintiff alleges only deterrence from use of a website without any connection to accessing the physical store. (C.f. *Langer v. Cooke City Raceway, Inc.* (E.D. Cal., July 27, 2022, No. 121CV01488JLTBAK) 2022 WL 2966172, at *9 [finding complaint only alleged that the plaintiff was deterred from use of the

website and failed to allege “what information he was not able to obtain that impeded his ability to access the physical goods and services at the public accommodation”], emphasis in the original.)

Intentional Discrimination under UCRA

The parties dispute whether the FAC adequately alleges that Defendant intentionally discriminated against Plaintiff for purposes of UCRA.

Pursuant to UCRA, if a claim is not an ADA violation, the plaintiff must prove the discrimination was “intentional” or constituted “willful, affirmative misconduct.” (Cot'n Wash, supra, 81 Cal.App.5th at p. 1036.)

Here, the Court finds that the FAC adequately alleges a claim under the ADA, which may act as a predicate for the UCRA claim. Thus, the Court need not analyze whether the alleged Website barriers constituted intentional discrimination.

Conclusion

Based on the foregoing, Defendant's Demurrer to the Complaint is overruled.